

CRIMINAL LAW (SECTION B)

1. COURSE NAME, NUMBER:

Criminal Law, Section B
LW/LAW 1040.4B

2. COURSE INSTRUCTOR:

Name	Professor Palma Paciocco (she/her)
Email:	ppaciocco@osgoode.yorku.ca
Office Location:	3034

Availability for Appointments:	Appointments are usually available on Thursdays (1:00-3:00) and can be booked using this link:
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<https://calendly.com/ppaci01-yorku/paciocco-office-hours>

You may email the instructor to request an appointment at a different time.

Virtual appointments are available on request and will be held using the “Office Hours” Zoom link posted to eClass.

Faculty Assistant:	Hyo Park (she/her) hpark@osgoode.yorku.ca
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Dean’s Fellows:	Clarissa Chan (she/they) clarissachan2025@osgoode.yorku.ca
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3. COURSE OVERVIEW

a. Course Description:

This course will introduce students to the general doctrinal elements of substantive Canadian criminal law. The course will focus on the act and fault elements of criminal offences (i.e., *actus reus*, or guilty act, and *mens rea*, or guilty mind) together with some of the common justifications and excuses that operate as defences. The course will also take up some issues of criminal procedure and criminal sentencing. Throughout the course, students will learn about how statutory law, constitutional law, and the common law interact to shape and constitute Canadian criminal law. A particular focus will be placed on statutory interpretation: students will learn how to read statutory provisions with reference to common law precepts and constitutional principles in order to identify the elements of a given criminal offence or statutory defence. Students will also be encouraged to practice reading cases actively and critically.¹

The overarching aims of the course are to (1) build a solid foundational understanding of the core doctrinal concepts of Canadian criminal law, and (2) foster a curious, critical, even skeptical approach to those concepts, informed by an appreciation of their social, political, and historical contexts. These aims are complementary: a strong understanding of doctrinal concepts is a precondition to meaningful critique and successful law reform, while the deep engagement inspired by a critical, inquisitive attitude strengthens comprehension and helps equip us to address novel legal problems.

b. Class Climate:

The study of criminal law requires us to engage with cases, facts, and issues that are very serious and often very troubling. We share a legal, ethical, and institutional obligation to maintain a learning environment that supports rigorous, searching, open inquiry in which every class member feels welcomed and equally included. To create and maintain this environment, it will be important to demonstrate sensitivity, respectfulness, and tact throughout all our interactions, bearing in mind that many people have been personally affected by crime and by the criminal justice system in a variety of ways. It will also be

¹ In this context and throughout this course, the terms “critical” and “critically” do not necessarily denote negative critique. “Critical” is intended in its more expansive sense, which describes a focused, informed analysis of merits and/or faults. Just as a film can receive “critical acclaim,” be “panned by critics,” or anything in between, your critical analyses of course content (ranging from your analysis of a particular line of reasoning in a given case, to your views about the system’s foundational political commitments) should be reasoned and informed, but they are not expected to converge on any specific conclusion.

important to maintain a spirit of open-mindedness and a presumption of good faith when listening to others' comments and questions.

If you have concerns about the class climate or about topics listed in the Course Outline, or if you need assistance identifying resources to support your success and wellbeing, please feel free to contact the instructor and/or Associate Dean Sonia Lawrence.

c. Learning Objectives:

By the end of the course, students will be able to:

1. Understand the core conceptual elements of a criminal offence, as well as the main justifications and excuses that can operate as defences, plus some key procedural and sentencing concepts.
2. Understand how the common law, the Constitution (including the *Canadian Charter of Rights and Freedoms*), and statutes (in particular, the *Criminal Code*) operate and interact to shape and constitute Canadian criminal law.
3. Interpret statutory provisions to identify the elements of criminal offences.
4. Use active reading strategies to analyse cases and other materials.
5. Identify the criminal law issues that arise in the context of a given set of facts, apply the law to those facts, and make arguments about criminal law in a lawyerly style.
6. Identify and critically evaluate some of the normative and policy commitments that animate Canadian criminal law.
7. Critically evaluate the operations of the Canadian criminal justice system with reference to its broader social, political, and historical contexts.
8. Identify some of the ethical considerations implicated by criminal law practice.
9. Engage in open, respectful, professional discussions about controversial issues.

d. Methodology & Expectations:

Every week we will cover one or more of the **units** that comprise this course. Each unit addresses several related concepts and sources (e.g. the unit on “causation” will cover tests, rules, and principles that all relate to the issue of when an accused’s conduct will be said to have caused a prohibited consequence, such as a death or bodily harm).

Each unit is associated with a set of **weekly objectives**, which are the specific learning outcomes you should attain by the end of the unit. (So, for example, the listed objectives for the causation unit include: “Identify when causation is an issue in a case” and “State and apply the standard(s) for causation.”) If you master all the listed weekly objectives, and if you pay attention to how they interrelate, then you will thereby satisfy most of the overarching **learning objectives** for the course (listed above in Section 3(c) of this Course Outline), and you will be well-prepared for the midterm and final examinations.

As the course progresses, you will increasingly see how the units hang together and how the weekly objectives interconnect. This “big picture” understanding is important. You are encouraged to regularly consult the “**Course Outline – Descriptive Overview**” (at pp. 20-31) to assist you with developing an accurate birds-eye view of the course as it progresses.

The **course eClass page** has an individual folder for each week where you will find the supplementary readings (where applicable), plus links to the ten **eClass Exercises** (see below at p. 6 for details). The eClass page also contains other folders that will be populated as the semester unfolds, including one for ‘bonus’ practice exercises.

To prepare for each lecture, you are encouraged to use this recommended approach:

1. Review the “**Course Outline – Descriptive Overview**” (below at pp. 20-31) to see how the assigned unit(s) fit within the course and to get a preliminary sense of their content.
2. Review the **weekly objectives** in the “**Course Outline – Weekly Schedule**” (below at pp. 32-48) to better understand the specific learning outcomes that are being targeted by the unit(s).
3. Read the assigned materials listed in the “Course Outline – Weekly Schedule.” Read actively with a focus on identifying the legal principles, questions, critiques, and/or perspectives presented or invited by those materials.
4. Complete the associated “**eClass Exercise**” (if applicable). Review the answers, which will help to reinforce foundational content from the weekly readings.
5. Identify any areas of confusion. Revisit the materials and/or your reading notes as needed to try to resolve your confusion independently and/or collaboratively with your classmates (since this is the most powerful way to learn and understand the material). Note down any residual questions or concerns related to the assigned materials that you wish to raise during the lecture.
6. Attend and participate in the lecture.
7. Post-lecture, identify any unresolved questions or areas of confusion, using the listed objectives as a reference point. Attend the **weekly drop-in office hours** **and/or request an appointment** if you have unresolved questions or concerns!

The course will also include **plenary sessions with guest speakers**, which will bring together all five 1L sections to learn about Indigenous perspectives on criminal justice, and about anti-Black racism and the criminal justice system. These sessions are core—indeed, foundational—parts of the course. Details will be provided early in the semester.

4. COURSE INFORMATION

a. Class Times & Locations:

- Tuesdays, 1:30-3:20 (Room 2002)
- Fridays, 10:30-12:20 (Room 2002)

This course has a universal Zoom link that will be used for all virtual office hours or meetings, and in case we need to move a lecture to Zoom. (All lectures are expected to take place in-person. If we need to move to Zoom due to extenuating circumstances, a notice will be sent to students.) The Zoom login information is posted to eClass.

b. Course Materials:

1. Don Stuart, Steve Coughlan & Lisa Dufraimont, *Learning Canadian Criminal Law*, 16th ed. (Carswell, 2024) (Required) (\$197)
 - Bookstore link: <https://campus.bookstore.yorku.ca/Learning-Canadian-Criminal-Law-16Th-Edition>
2. Tremeeear's *Annotated Criminal Code*, 2027 Student Edition (Required) (\$122.20)
 - Bookstore link: <https://campus.bookstore.yorku.ca/Tremeeears-Annotated-Criminal-Code-2027-Student-Edition-STPV>
3. Supplemental readings posted to eClass (Required & Recommended) (\$0)

A note on used course materials:

- The Stuart, Coughlan & Dufraimont casebook is used regularly in several criminal law sections, and the current edition has been in use since 2024. It should therefore be possible for most interested students to locate used copies.
- A 2027 annotated *Criminal Code* is mandatory for this course. The *Criminal Code* recently received significant updates, and students who use an earlier edition for purposes of the examinations do so at their own risk. The criminal law instructors (under Professor Berger's leadership) negotiated a bulk-purchase discount price for Osgoode students for Tremeeear's *Annotated Criminal Code*, 2027 Student Edition, and that reduced price is reflected in the bookstore listing.

c. Evaluation:

1. ECLASS EXERCISES (10%)

Final deadline: Friday, November 27 @ 3:30PM (ET)

- Ten eClass Exercises are listed on the Course Outline – Weekly Schedule.
- The exercises are posted in the weekly eClass folders as online quizzes.
- The exercises are not graded for correctness. Students will receive 1% for every exercise they submit before the deadline, for up to 10% of their mark in the course.
- Late eClass Exercises will receive no credit. Requests for extensions and exceptions will be governed by Osgoode's accommodation policies.
- To maximize learning, it is strongly recommended that students complete the exercises on an ongoing basis, keeping up with the Course Outline – Weekly Schedule, rather than waiting until close to the final deadline.
- The exercises are set up so that students can make multiple attempts at the questions for study purposes. Students are strongly encouraged, however, to submit their first attempts so the instructor can see any initial errors. Allowing the instructor to see errors will not impact students' grades, but it will enable the instructor to better identify areas of confusion to promote responsive teaching.
- After completing an exercise, students will gain access to an answer analysis. The questions and answer analysis can then be revisited on an ongoing basis. After the final deadline has lapsed, students will *only* be able to access the questions and answer analyses for those exercises they have already submitted.
- The eClass Exercises are not presented in the same format as the exams. They are designed to assess basic conceptual understanding, which is a precondition to the more sophisticated critical analysis assessed by the exams. Students will be given access to representative practice exam questions as study aids.
- The eClass Exercises have three main pedagogical purposes:
 1. Improve and reinforce students' understanding of the course content.
 2. Enable the instructor to monitor students' progress and understanding.
 3. Enable students to self-monitor their progress and understanding.

2. MIDTERM EXAMINATION (Ungraded)

Tuesday, October 20 – 1.5 hours

- The midterm exam will be written during class time.
- Students must use their assigned exam number (M#) for anonymous assessment.
- The midterm exam is ungraded. It is designed to give students the opportunity to practice their exam-writing skills and receive individual feedback.
- After the exam, students will receive individual comments on their answers, a memo setting out an analysis of the questions, and a resource to assist with self-evaluation of exam-writing strategies and performance.
- Further details about the midterm exam will be provided later in the semester.

3. FINAL EXAMINATION (90%)

Thursday, December 3 – 3 hours

- The final exam will be cumulative (i.e., it will cover the entire course)
- The final exam will have the same structure as the midterm but will be longer.
- Students must use their assigned exam number(F#) for anonymous assessment.
- Further details about the final exam will be provided later in the semester.
- After first semester grades have been released, the instructor will provide information about how interested students can schedule an appointment to discuss their final exam performance and final course grade.

Policies for Criminal Law (Section B) midterm and final examinations:

- The exams will be open book, but computer access will be restricted. Students will be permitted to consult any printed course materials.
- Students must bring a 2027 *Criminal Code* to the exams. It will not be possible to successfully complete the examinations without a printed *Criminal Code*.
- Exam answers must only include the student's own original work.
 - This rule prohibits students from submitting exam answers that include portions of summaries, class notes, or other materials drafted by other people, or drafted collaboratively with other people.
 - This rule prohibits students from submitting exam answers that include AI-generated text. (This rule does not, however, prohibit the use of the basic spellcheck or grammar check functions in Word or other word processors.)
 - This rule prohibits students from submitting exam answers that include quotations or close paraphrases from sources without proper attribution. (Shortform citations are fine; formal citations are not required for the exam and will not be rewarded.)
 - References to the instructor's lectures/PowerPoints/statements do not need to be attributed. Please note, however, that answers demonstrating original, focused analysis will be rewarded. Answers that reproduce undigested course material will receive lower marks.
 - Legal tests or standards from cases and statutes should *not* be paraphrased; they should be reported with maximum accuracy. A failure to properly attribute legal tests/standards will not itself be treated as academic misconduct, but it may result in a lower mark because exam answers that correctly state legal tests/standards *and* their sources will typically demonstrate greater understanding than exam answers that only states the tests/standards.

d. AI Policy for Criminal Law - Section B (with advice for excelling in the course!):

AI Policy (Mandatory! Must read!)

This course is primarily evaluated by examination. As noted above, students are strictly prohibited from submitting midterm or final exam answers that include portions of text generated by AI. Students are otherwise permitted to use AI to assist with preparing their materials and/or studying for the course, with two important caveats.

- Caveat #1: Students who use AI to assist with preparing study materials must take care to ensure they do not later reproduce AI-generated text in their exams or assignment answers. Doing so advertently *or inadvertently* could constitute academic misconduct.
- Caveat #2: Many available uses of AI are not well-suited to achieving the Learning Objectives for Criminal Law – Section B.

Policy rationale & advice for law students (recommended read)

At a general level, emerging research suggests that frequent AI usage negatively impacts critical thinking abilities, i.e., that it leads to a decline in precisely those cognitive skills that are most important to law students and legal professionals. (Imagine some baseball players were using a new technology for batting practice because it seemed to boost training efficiency, but new research suggested that, in the long-term, training with this technology caused a measurable loss in strength and hand-eye coordination. If you were a baseball player wanting to improve your batting, would you use this technology?)

Relatedly, the ability to efficiently read a significant volume of material remains a core lawyerly skill, even in the age of AI. This skill is developed through practice, including by keeping up with your weekly reading load throughout law school. Overreliance on summaries or other reading “shortcuts” forfeits this important learning opportunity.

More particularly, when it comes to preparing for law exams, relying on study materials produced by others—including AI-generated materials, summaries written by former students, online case summaries, etc.—carries risks and drawbacks. Most obviously, these materials can contain errors or important omissions. Somewhat less obviously, the process of personally *making* a summary is arguably the single most effective study strategy available to law students.

Indeed, for Criminal Law – Section B, the course Learning Objectives (at p. 3, above) are largely concerned with helping students develop an intimate, critical, coherent

understanding of Canadian criminal law’s conceptual architecture. That conceptual architecture includes, among other things: the system’s foundational ethical, political, and conceptual commitments (e.g., the presumption of innocence, its rationale, and the various legal tests and standards that flow therefrom); the sources of authority that power our criminal laws, both formally and in practice; the dominant analytic culture (e.g., the typical format of criminal law judgments; the kinds of arguments that tend to be regarded as persuasive in the context of criminal litigation; etc.); etc. The process of synthesizing assigned readings, reviewing them alongside your personal lecture notes, and integrating them all into a coherent, concise set of study materials is the best way to develop a deep understanding of the criminal justice system’s conceptual architecture, as presented in our course. Reliance on ‘pre-boiled’ materials forfeits this key learning opportunity.

Additionally, our course privileges some particular ways of engaging with cases and statutes—that is, some particular ways of *reading*. These may or may not be compatible with various available uses of AI as a study tool. A bit of background on how to read cases and statutes for our course will be helpful here. It can be considered in conjunction with the section on “Methodology & Expectations” set out at pp. 3-4, above.

To begin, it is important to note that different lawyers will engage with cases and other sources differently, depending in part on their practice areas. Engagement with cases is more central to some areas of legal practice than others, and there are different ways of working with cases that may be more or less important for various kinds of legal practice. Your different law school courses will therefore emphasize different skills, strategies, and types of readings. For criminal lawyers (and for many other legal practitioners), the ability to closely read an individual case—and to do so actively, critically, and carefully—is a crucial skill. In part, this skill is important to criminal lawyers because individual criminal cases are a key source of legal authority.² Criminal lawyers must regularly read new

² Some further information, for context: First, thousands upon thousands of criminal charges are laid in Canada each year, resulting in thousands upon thousands of criminal cases. To illustrate, [Statistics Canada](#) reports that, in 2023-2024, adult criminal courts in Canada rendered 228,425 decisions. Second, although most criminal cases are resolved without a trial (an issue we will discuss in our unit on plea-bargaining), a great many criminal trials *do* occur. Where a criminal trial is before a jury, we get a bare verdict; the jury does not explain how it reached that verdict. (We may, however, get some written decisions by the judge regarding discrete evidentiary and procedural issues that arose during the jury trial, or sentencing an accused who was convicted by a jury. We may also get an appellate decision following an appeal from a jury trial.) Where the trial is before a judge sitting alone, the judge *must* issue reasons for their decision, either verbally (“from the bench”) or in writing. Some of those decisions are reported (meaning they are easy to find online); others are not (meaning they are much harder to access). Third, most criminal cases are legally straightforward in the sense that they do not raise novel issues. And most cases conclude after the accused has either been acquitted or convicted and sentenced. As such, most criminal cases do not generate authoritative legal judgments that change the law.

Some criminal cases do go up on appeal, however: the Crown, the defence, or both decide to seek further consideration from a higher court. Note that most appeals are based on a claim that one or more *legal* errors

cases—especially new appellate cases that are authoritative in their jurisdiction—to identify and metabolize new developments in the law. Some case law developments are big and decisive; others are subtle or incremental. Some legal decisions change the law; most do not. How do legal professionals know which cases matter, and how? In part, they are assisted by various subscription reporting services and periodicals, which identify and summarize important cases, as well as by continuing legal education programs. But they must also read cases on an ongoing basis, using reading strategies that allow them to evaluate and understand the significance of new decisions. With all this in mind, our Criminal Law course is designed to help build the foundation you will need if you want to maintain a sophisticated, detailed, current understanding of Canadian Criminal Law as part of your legal career. That foundation includes a sense of the criminal law’s conceptual architecture, core substantive knowledge, and effective reading and interpretation strategies. To that end, our course emphasizes certain modes of engaging with cases and statutes. (Future non-criminal lawyers should rest assured that these skills are also helpful to many other kinds of legal professionals, and for many upper-year law classes!)

A further point is relevant, both to reading and to becoming an especially effective criminal lawyer: Many cases can be relied on to support multiple legal analyses or arguments. Sometimes, the case will obviously engage more than one core issue. At other times, its various uses may be non-obvious. For this reason, an active, nuanced, expansive approach

was committed at trial; appellate courts are extremely limited in their authority to simply reconsider the factual conclusions that were reached by a trial judge (or jury). Criminal cases are overrepresented on appeal dockets. This is so because of the high level of legal complexity involved in many criminal trials (which heightens the risk of errors), as well as the high stakes for litigants and stakeholders (which motivates parties to ‘fight on’). Many criminal appeals are decided by provincial/territorial courts and terminate there. Some make it all the way to the Supreme Court of Canada. Exceptionally, because of their uniquely high stakes, some criminal cases can be appealed to the Supreme Court of Canada (“SCC”) “as of right” (meaning the litigants are entitled to be heard without any preliminary assessment of whether their appeal may be meritorious; most would-be SCC appellant litigants need to be “granted leave” to appeal, i.e., they must satisfy the Court that their case is worth hearing). Some criminal litigants who are not eligible to appeal as of right to the SCC will seek leave to appeal. In 2025, the Supreme Court of Canada received 18 notices of appeal as of right, plus 517 applications for leave, of which [22% \(103\)](#) were for criminal matters. All this means that we see a relatively high number of appellate-level criminal decisions.

Appellate-level decisions are especially authoritative, meaning they bind lower courts in their jurisdictions. If, for example, the Ontario Court of Appeal decides a criminal case that results in even an incremental change to how the law is interpreted and applied with respect to a particular issue (say, the mental state required for a particular offence), then all trial courts in Ontario that encounter this same issue *must* ensure their decisions are consistent with that decision. Many appellate-level decisions turn out not to be very important beyond the immediate case, because they do not change the law. (Indeed, many decisions simply confirm there was no error below.) Some decisions *do* change the content of the criminal law, however—and they may do so in ways that are more or less explicit. Many of the readings in our course are excerpts from appellate-level decisions that changed the law. In general, the criminal law evolves regularly through caselaw developments. As lawyers, we learn about and metabolize these developments by reading cases!

to reading cases can be helpful. Conversely, efforts to identify a single “main point” or “ratio” may be unduly limiting, while others’ summaries may crop out valuable details.

To take a few examples, in our class, we will read *Oakes* to help us understand the presumption of innocence, but the same case will also come up in Constitutional and Public Law when you learn about s. 1 of the *Charter*. We will read different portions of *North Bay (City) v. Viens* in two different weeks because that case relates to more than one unit covered in our course. *Creighton* will likewise come up more than once.

Relatedly, and as noted above, some parts of cases may seem minimally important in their original context but can be used by creative litigants as building-blocks for new arguments in future cases. Or a premise that is developed in one context may be carried over to another. For example, at the outset of the course, we will study *R. v. Gladue*, in which the SCC considered how colonialism and systemic anti-Indigenous racism should factor into the process for determining an appropriate criminal sentence for Indigenous offenders. Later, we will study *R. v. Barton*, which is an important case for the law of sexual assault. In *Barton*, the SCC relied in part on *Gladue* to support its analysis of how judges should instruct juries to reduce the risk that criminal verdicts will be shaped by prejudice against Indigenous women and girls who are the victims of violent crime.

In short, cases can function like a Swiss Army Knives, with multiple tools that can be prised out for different purposes. Lawyers who learn to read cases closely, actively, and creatively have more tools at their disposal and are better equipped to craft novel, persuasive arguments. With these dynamics in mind, and as noted above, one aim of our Criminal Law course is to encourage careful, critical, focused reading. The type of reading prioritized in our course will often (but not always) involve identifying the core parts of a case that are included in a typical law school summary (i.e., the key facts, the legal issues before the court, the judge’s analysis of how the law applies to the facts to resolve those issues, and the conclusion/result.) But it can also involve identifying other features, such as the premises (stated or unstated) that structure the analysis; the judge’s analytic and rhetorical manoeuvres; the procedural context (Who is appealing? Is this a decision on a pre-trial *Charter* motion, a criminal trial, a contested sentencing hearing? Etc.); the broader contextual factors that were (or were not) treated as relevant; and so forth.

As a matter of course design, the goal of encouraging close, careful reading is balanced against another goal: ensuring that we cover essential content. As a result, we mainly read case excerpts to allow us to get through more content, even though reading case excerpts does not provide as ample an opportunity to develop active reading skills, as compared with reading decisions in full. Nevertheless, the course is intended to promote and reward the active, independent reading of assigned materials. The assigned readings include some lengthier, more multifaceted case excerpts (e.g. *Zora*). And regardless of whether you are reading a full case or a very small excerpt, a careful, critical reading can help you develop a

more refined understanding of the course content. Ultimately, this approach can tee up more sophisticated exam answers—answers that go beyond covering the essentials to also incorporate more nuanced observations and arguments.

Some of your assigned readings are not cases, but *Criminal Code* provisions. Statutes (including the *Criminal Code*) have a unique semantic architecture. Learning to navigate statutes in their original form is another fundamental lawyerly skill for many types of lawyers, and it can only be learned and improved through practice. It cannot be substituted by reviewing “layman’s term” summaries of statutory provisions. Statutory interpretation is *extremely* important for criminal law practice, and it has some unique features in the criminal law context. As such, statutory interpretation (especially with respect to the *Criminal Code*) is a major focus of our course and of the final exam.

How does all this relate to AI? In brief, the type of reading that is encouraged in this course simply cannot be substituted by reviewing a summary of key points (whether drafted by AI or by another person). Students may, of course, need to rely on shortcuts from time to time to manage their workloads (including, but not limited to, shortcuts facilitated by AI). But a “TL;DR” approach to your Criminal Law readings will not cultivate the skills, perspectives, and knowledge required to excel in our course—or to become a competent lawyer.

To be clear, the foregoing is not intended as a refutation of the claim that AI can be important and valuable to legal practice. Nor is it to suggest that AI does not belong in the law school curriculum, or that it should necessarily be excluded from your personal studying toolkit. Rather, it is an argument for why *many* uses of AI may diminish your ability to achieve the Learning Objectives for Criminal Law. You may find that—taking careful account of the foregoing—some uses of AI do work for you as effective aids to help you achieve those Learning Objectives. If so, I would love to hear about them!

5. OSGOODE AND YORK ACADEMIC POLICIES

This section is required by Osgoode Hall Law School to be in every course outline. Students are expected to have read the whole section.

a. Academic Honesty and Integrity:

Osgoode students are required to maintain high standards of academic integrity and are subject to the **York Senate Academic Conduct Policy and Procedures** and the relevant [Osgoode Academic Rules](#). Further information is available on the [York Academic Integrity](#) site.

The Senate Policy and Osgoode Academic Rules are also available via the *JD Students* part of the MyOsgoode website, proceeding through the “Student Handbooks” button, then “JD Academic Handbook”, and the finally the “Academic Rules” link.

Special attention is drawn to the following three matters related to reliance on external persons, works, and/or technologies:

1) *Unauthorized use of collaborative study materials*

- e. *The provisions of the York Senate Policy on Academic Honesty on unauthorized collaboration have been supplemented by Osgoode’s “[Guidelines on use of Collaborative Study Materials in Examinations](#)”, found [HERE](#). Students are strongly advised to read the Guidelines closely; knowledge of them will be assumed. Note a key bottom-line is that use of collaborative study materials in the ways and contexts set out in the Guidelines is prohibited unless explicitly permission by the instructor and, then, only to the extent of that authorization.*

2) *Assistance from content-generating artificial intelligence (GenAI) and/or AI prohibited by the instructor*

The Academic Conduct Policy and Procedures contain rules on use of GenAI and AI more generally. Some key provisions are reproduced below to ensure no student is unaware of them:

Section 5.2.a.i., ii. & x:

Cheating – the attempt to gain an unfair advantage in an academic evaluation.

Forms of cheating include but are not limited to:

- i. Using an undocumented or unreferenced content generator, including the use of text-, image-, code-, or video-generating artificial intelligence (AI);
- ii. Obtaining assistance by means of documentary, artificial intelligence technology, electronic or other aids that are restricted by the instructor (see Section 6.2.c);
- ...
- x. Submitting work prepared in collaboration with a third party when collaborative work on an assessment has not been authorized by the instructor/supervisor, and goes beyond correction of grammar, idiom, punctuation, spelling and sentence mechanics;

For the sake of caution “third party” in section 5.2.a.x. should be read to include use of tools like Word’s spelling and grammar feature, Grammarly, and so on. Such tools are fine to use but

they cannot “go beyond correction” any more than a human third party’s assistance could. Because this provision is structured as prohibited-unless-authorized, students may not use such tools to essentially re-write drafts (if and when some tools develop such capacities) unless the instructor has enunciated a general course policy allowing such use.

Section 4:

Undocumented/Unreferenced: refers to undocumented and/or unreferenced quotes, passages, sources, and other missing or improper citation of work submitted for evaluation.

Section 6.2. & 3:

It is the responsibility of **students** to:

...

c. follow their instructors’ expectations for using text-, image-, code-, or video-generating artificial intelligence (AI); referencing sources; group work and collaboration, and be proactive in pursuit of clarification and resources to support these expectations;

...

It is the responsibility of **course directors and graduate supervisors** to:

b. communicate with and support students in following instructors’ expectations for *using text-, image-, code-, or video-generating AI*; referencing sources; conducting group work and collaboration;

3) *Plagiarism, unattributed paraphrasing and connections to improper use of AI*

The York Senate Academic Conduct Policy and Procedures prohibit plagiarism in section 5.2.b.:

Plagiarism – the appropriation of the work of another whether published, unpublished or posted electronically, attributed or anonymous, without proper acknowledgement.

This includes but is not limited to:

- i. Presenting all or part of another person’s work or ideas as something one has produced where work includes, but is not restricted to, text, code, technical and creative production, paragraph and essay structure and organization, and other forms that constitute intellectual property;
- ii. Paraphrasing another’s writing without proper citation;
- iii. Representing another’s artistic, technical work or creation as one’s own;

- iv. Reproducing without citation the student's own work originally presented elsewhere; and
- v. Failing to attribute sources, or failure to attribute sources properly.

Apart from section 5.2.b.i.'s relevance to use of AI (in terms of how AI can lead to "presenting ...another person's work or ideas as something one has produced"), students are especially urged to understand that paraphrasing without proper citation is plagiarism. There has always been a concern that some students do not sufficiently understand the need to cite to sources of paraphrases no less than directly quoted work. This problem may be growing. Of late, this is manifesting itself in students using extensive paraphrases, sometimes that go on for pages, but only citing to the source at or near the start or at or near the end – and sometimes sprinkling in a reference or two in between.

Apart from such extensive paraphrasing not being exemplary work, the moment a reader cannot know whether a given idea or thought is connected to a citation (because the citation is so distant from it) is the moment such paraphrasing also constitutes the academic offence of plagiarism for failure to properly attribute. Students are urged to take great care here, especially since there are reasons to worry that even instructor-authorized use of an AI tool can lead students to start producing substantial paraphrases of AI-generated text. Again, however poor such use of AI would be, it also comes with the risk of plagiarism if the student has not properly referenced the AI tool and any question(s) used to prompt the AI tool's answers, and/or has not documented by retaining the text of both the questions (and follow-up prompts) and the answers given by AI. Thus, section 5.2.a.i. cheating by use unreferenced and/or undocumented AI content generation can intersect with section 5.2.b. plagiarism.

b. Religious Observance:

York University is committed to respecting the religious beliefs and practices of all members of the community, and making accommodations for observances of special significance to adherents. Should any of the dates relating to examinations or assignments for this course pose such a conflict for you, please let Assistant Dean, Students, Mya Rimón know within the first three weeks of class.

c. Students with Disabilities and Accommodation Needs:

York University has a range of resources to assist students with physical, mental, and learning disabilities/challenges in achieving their educational objectives. Students with disabilities requiring accommodation in the classroom or in the examination or evaluation process are encouraged to identify themselves to [York's Student Accessibility Services](#) office or Osgoode's Office of Admissions & Student Services as soon as possible.

Students seeking accommodation in experiential education settings are encouraged to read the “Accommodation Information for Clinical & Intensive Program” handout provided to them with their enrolment offer. All requests for accommodation will be kept confidential.

Requests for accommodation for in-term work must be made, in writing, to either the instructor or to the Academic Accommodations Coordinator, Nicole Casey. Such requests must be made as soon as the need for accommodation arises and, barring exceptional circumstances, in advance of the deadline for the work.

Requests for accommodation for final examinations and final papers may only be made to and approved by the Assistant Dean, Students, Mya Rimón and must be made in advance of the examination date or final paper due date.

d. Other York University Policies, including Ethics Review Process:

Further information concerning relevant York University academic policies, such as the Ethics Review Process for research involving human participants is available online via the [University Secretariat](#).

6. POLICIES REGARDING STREAMING AND RECORDING FOR IN-PERSON, REMOTE, AND HYFLEX (DUAL-DELIVERY) TEACHING AND LEARNING

a. Remote and Hyflex classes:

In 2026-27, a handful of courses are being delivered fully remotely (i.e., using Zoom), partly remotely (blending in-person classes for the majority of the class with less frequent online classes or modules) or by Hyflex (dual-delivery). The Hyflex mode of delivery involves some students joining class in real-time from an online connection while the rest of the students are in-person in the physical classroom with the instructor.

Note, however, that instructors of all in-person courses have the discretion for pedagogical reasons to run some classes in a way that has students attending online, whether everyone is online including the instructor (fully remote on Zoom) or whether some are online with the instructor in the physical classroom with other students (Hyflex). The number of such classes is limited by Osgoode’s definition of an in-person course as being a course that is predominantly and essentially in person.

b. Modes of Delivery, Streaming, and Recording:

With respect to lecture classes in “courses” (as opposed to “seminars”), class sessions must be recorded – whatever mode in which they are being taught – in order to be in compliance with Osgoode’s recording policy for lecture courses. For regular in-person lecture sessions, that means recording from the computer console at the front of the class of both the instructor’s voice and the screen display using a platform called Panopto. If a given lecture class session is done in a synchronous remote mode (Zoom) or a Hyflex mode, it too must be recorded under Osgoode’s recording policy.

Then, for any of these modes, it is left to the pedagogical judgment of the instructor as to whether the recording will be posted on eClass for all students in the course to access. Where an instructor decides not to make the recording of their lecture class available to all students in the class (as they are permitted to decide), the recording must nonetheless be made available to any student who has an accommodation that requires access to the recording.

As for seminars, there is no duty to record seminar sessions under Osgoode’s policy but an instructor may record a class session (or indeed the whole course) if they wish. If they decide to, it is further in their discretion as whether to post the recording to the eClass site. As well, the above-mentioned discretion to have some classes that are not fully in-person – e.g., that are fully remote on Zoom or optionally remote for students via Hyflex – also comes with a discretion (but no duty) to record and upload.

c. Consent and Protections:

Whether in lecture classes of a course or in a seminar, activities for any class delivered synchronously online and any class delivered by Hyflex’s dual-delivery method involve live streaming. They may also, and usually do, involve recording. They may further involve storing the recording online in order to make the recording available to the class, after the class has ended, on the eClass platform.

Images, audio, text/chat messaging that have been recorded may be used and/or made available by the University to students enrolled in the course and those supporting the course for the purpose of materials review, for assessment, etc. Recordings will be managed according to the University’s Common Record Schedule and will be securely destroyed when no longer needed by the University. Your personal information is protected in accordance with York’s [Policy on Access of Information and Protection of Privacy](#) and the [Freedom of Information and Protection of Privacy Act](#).

The University will use reasonable means to protect the security and confidentiality of the recorded information, but cannot provide a guarantee of such due to factors beyond the University's control, such as recordings being forwarded, copied, intercepted, circulated, disclosed, or stored without the University's knowledge or permission, or the introduction of malware into computer system which could potentially damage or disrupt the computer, networks, and security settings. The University is not responsible for connectivity/technical difficulties or loss of data associated with your hardware, software, or Internet connection.

By engaging in course activities that involve recording, you are consenting to the use of your appearance, image, text/chat messaging, and voice and/or likeness in the manner and under the conditions specified herein.

In the case of a live stream recording during a remote class, if you choose not to have your image or audio recorded, you may disable the audio and video functionality. In the case of a live stream recording in a Hyflex (dual-delivery) class in which some students are in-person with the instructor and some students remote online, if you choose not to have your image or audio recorded, you may opt to attend the Hyflex class from the remote end, at which point you can disable the audio and video functionality.

In each such choice situation, the power to choose should be exercised against a background understanding that disabled audio and video can seriously affect the interactive dynamics of a class environment and the collective benefits of such interaction. Accordingly, if an instructor requests students not to turn off their cameras, students should not understand this as an order but as a considered preference based on serious reflection on pedagogy. You may still exercise your choice but are requested not to do so if turning off video or audio is more a matter of convenience than of principled objection to being seen or heard in a class.

d. Duties:

You are not permitted to disclose the link to/URL of an event or an event session recording to anyone, for any reason. Recordings are available only to authorized individuals who have been directly provided the above instructions/link for their use. Recordings for personal use, required to facilitate your learning and preparation of personal course/lecture notes, should not be made without the permission of the instructor or event coordinator and, further, should not be shared with others without the further permission of the instructor or event coordinator.

f. Additional policies and information related to lecture recordings for Criminal Law – Section B:

All synchronous lectures for Criminal Law (Section B) are expected to take place in-person and will be recorded and posted to eClass. There are also some pre-recorded, asynchronous lectures alongside the reading assignments.

Osgoode's classroom recording technology captures the PowerPoint presentation and the instructor's voice (and sometimes the instructor's image). As a result, some content, including students' questions, small group exercises, etc., will not be captured by the lecture recordings. If any lectures must be delivered through Zoom, the recording will capture additional content. The plenary sessions for the course (see p. 4, above) may or may not be delivered virtually, and they may or may not be recorded, depending on speaker availability and preferences.

The classroom technology is not failsafe. Per Osgoode policy, "[t]he failure of a lecture to be successfully recorded, or a deficiency in a recording, does not render the material covered in that lecture unexaminable or otherwise exempt from evaluation."

Students must abide by the duties set out in the Osgoode policy, which prohibit students from making personal recordings or disseminating recordings without permission. No student may take a "screenshot" or otherwise capture an image during any virtual/Zoom lecture/meeting that forms part of the course.

These policies are intended, among other things, to foster open discussion and inquiry while promoting a sense of belonging and inclusion on the part of all classmates. It is imperative that students feel confident they can share ideas, offer arguments, and ask questions during class time without those interventions being disseminated beyond the classroom. For this reason, students are expected to demonstrate respect and discretion in all conversations that form part of, or are about, the Criminal Law course. These expectations form part of the standards of conduct that govern us as members of the Osgoode Hall Law School community and are foundational to the self-governing legal profession.

COURSE OUTLINE – DESCRIPTIVE OVERVIEW

PART I: BACKGROUND AND CONTEXT FOR THE STUDY OF CRIMINAL LAW

1. Introduction to the Course

We begin with a general introduction to the course, including its substantive scope, plus technical information about how the content will be organized, presented, and evaluated.

Most of this course focuses on “substantive” criminal law: the rules and principles that tell us when someone can be held criminally liable for a criminal offence. Before digging into the details of those rules and principles, we first start to think critically about whether and when it is desirable to rely on the criminal law to effect social goals. We also situate the course content by learning a bit about some of the other areas of law that, together with substantive criminal law, structure the criminal justice system—in particular, criminal procedure, evidence, and sentencing. In addition, we familiarize ourselves with a few overarching themes of the course, to which we will return throughout the semester.

2. Sentencing

- a. The Principles and Purposes of Sentencing**
- b. Sentencing Indigenous Offenders**
- c. Sentencing Black Offenders**

We start the course at what might appear to be its natural endpoint: sentencing. By starting with a brief look at the principles and purposes of sentencing, we begin to develop a sense of what the criminal justice system purports to do (i.e., rehabilitate offenders, deter harmful conduct, etc.). In this way, sentencing serves as a useful entry point for thinking about why we bother to develop and administer the substantive rules that are the principal focus of this course. By starting with sentencing, we also begin to think critically and contextually about some of the costs that the criminal justice system imposes on individuals and communities, and about how those costs are unequally distributed. Our unit on sentencing will be particularly attentive to the criminal justice system’s disparate impacts on Indigenous and Black individuals and communities.

3. The Criminal Justice Process

- a. Overview of the Criminal Justice Process**

Next, we zoom out to take a cursory look at the main procedural steps that together constitute the criminal justice process as it is experienced by an accused person, beginning with the initial investigation and arrest, and culminating in the sentencing process and beyond. This course is primarily concerned with the rules and principles that tell us what constitutes a criminal offence, and whether a person who is being prosecuted

for an offence should be convicted or acquitted at the end of their trial. When studying those substantive rules and principles, however, it is helpful to have a basic understanding of the processes by which the trial itself unfolds, and of how the trial fits into the longer procedural trajectory. In this unit, we will consider a report by the Ontario Human Rights Commission that addresses anti-Black racism at the early stages of the criminal justice process in Toronto. This report relates directly to one of the “themes” of the course – discretion and the rule of law; it connects back to our unit on sentencing Black offenders; and it foreshadows some of our future discussions, e.g., on defence of person.

b. Plea Bargaining

We also spend a bit of time discussing plea bargaining, which is an extremely common process that bypasses many of the formal procedural steps, most notably the trial itself.

c. The Adversarial System in Critical Perspective

Finally, this part of the course briefly considers some of the political commitments and epistemological assumptions that inform our criminal justice process—for example, the assumption that we can get at the truth through an adversarial contest between the Crown and the defence. We consider some of the critiques that have been brought to bear on those commitments and assumptions, particularly from Indigenous perspectives. One important take-away from this part of the course is that the Canadian criminal justice system we study together is a *paradigm*, in the sense that it constitutes one possible framework among many; it is animated by a set of related norms, values, and beliefs. Other systems and societies may endorse different norms, values, and beliefs, which in turn structure different legal systems for addressing the events or social challenges that we call “crime.” We can draw a direct connection between this observation and our unit on sentencing Indigenous offenders.

4. Presumption of Innocence, Burdens of Proof, and Standards of Proof

a. Presumption of Innocence

b. The *W.(D.)* Framework

c. Air of Reality Test

d. Burdens of Proof, Standards of Proof & Presumptions

Our overview of the criminal justice system points us towards the two key principles that are the focus of Unit 4: the presumption of innocence, and the attendant Crown burden to prove guilt beyond a reasonable doubt. These principles are centrally important to the Canadian criminal justice system paradigm. They reflect foundational ideas about the relationship between the state and the individual, and about how the trial process should unfold. In this unit, we learn more about how the presumption of innocence is defined and applied, and we think critically about some of its implications and limitations.

We also learn about the different *burdens* of proof that are imposed on the Crown and the defence (i.e., we learn about when the Crown bears the burden of proving a contested fact, and when the defence bears that burden).

We learn, further, about the *standards* of proof that are applied (i.e., about the degree of certainty the Crown or the defence must establish to discharge their respective burdens). Generally, if the Crown bears the burden of proof, then it must provide proof to the standard of “beyond a reasonable doubt.” Generally, if the defence bears the burden of proof (a comparatively rare occurrence), then it is required to meet a lower standard: proof “on the balance of probabilities.” We also encounter the “air of reality” test, which parties must satisfy before making certain legal claims. This test is relatively easy to meet. It requires the party to show that the claim they want to advance has “an air of reality,” meaning, in effect, that there is evidence available on the record to support it, such that it is worth considering.

Finally, we examine the conceptual relationships among presumptions, burdens, and standards. We also learn about an analytic framework (*W.(D.)*) that is used to ensure the “beyond a reasonable doubt” standard is applied in cases involving competing witness accounts (where there is a risk the judge/jury may assess which witness is comparatively better, rather than assessing whether the Crown has actually met its burden).

PART II: HOW THE CRIMINAL LAW IS MADE

5. Sources of Criminal Law

- a. Common Law**
- b. Statute**

Having developed a basic sense of how the criminal justice system is administered, we now turn to the questions of who makes our criminal laws, and under what constraints. Criminal offences are now all statutory in nature. In other words, a criminal offence can only be established by the legislature; it cannot be created in an ad hoc fashion by a police officer, judge, or other justice official. We discuss the rationale for this rule as it relates to the key principles introduced in Part I of the course, and we interrogate the degree to which the rule is honoured in practice.

In this unit, we also start to build our “statutory interpretation toolkit,” which is the collection of rules, principles, and practices that should be employed when interpreting a statutory provision that purports to set out a criminal offence or defence. We will spend a lot of time in this course discussing and using that toolkit!

6. Constitutional Limits on Criminal Law

a. Division of Powers

b. The *Charter*

There are important constitutional limits on the statutory power to establish criminal offences, including division of powers limits, which related to how different levels of government may act in this sphere, and *Charter* limits. Sometimes, a statutory provision that purports to set out a criminal offence, or to demarcate a criminal defence, will be unconstitutional and hence inapplicable; or it may be interpreted and applied in a manner that achieves constitutional compliance but chafes against the plain language of the text.

We are especially interested in how the “principles of fundamental justice” guaranteed by section 7 of the *Charter* limit Parliament’s power to create criminal offences, and how they shape criminal defences. We learn about some of those principles in this unit. We encounter other *Charter* principles when we study the elements of the offence, and again when we get to justifications and excuses.

PART III: THE ELEMENTS OR “INGREDIENTS” OF A CRIMINAL OFFENCE

What does a Crown attorney have to prove to secure a criminal conviction? We have learned about who has the authority to create criminal offences, as well as the *Charter* limitations that constrain that authority. We have talked briefly about the process by which a person who is suspected of having committed a criminal offence is prosecuted, and about the sentencing process that will occur if they are ultimately convicted. We have also examined what it means for the accused to be “presumed innocent” and the standard the Crown must meet to secure a conviction. But what does the Crown actually need to prove beyond a reasonable doubt in order for someone to be convicted of a criminal offence?

We have already started to learn about the process of statutory interpretation by which we read and understand criminal offences, but to engage in that process effectively, we must develop a robust understanding of the elements that make up a criminal offence.

The elements of a criminal offence are a key focus of this course. In this part of the course, we will analogize the elements to a recipe. To secure a conviction, the Crown must generally prove beyond a reasonable doubt that every “ingredient” is accounted for. If any ingredient is missing, then the “recipe” cannot be executed, and an acquittal must follow.

As we will see, every criminal offence has two components: an “act” component (*actus reus*) and a “mental state” component (*mens rea*). We do not criminalize ‘bad’ thoughts without an accompanying act or omission; nor we do not criminalize harmful acts or omissions unless they are associated with blameworthy mental states. Further, a single

offence may have multiple *actus reus* “ingredients” and multiple *mens rea* “ingredients.” To identify the ingredients, we must engage in a careful process of statutory interpretation. That process relies, in large part, on constitutional and common law (i.e., “judge-made”) rules and principles to fill in gaps in statutory language. A mastery of those rules and principles is crucial to identifying the ingredients for different criminal offences.

7. Elements of the Offence: *Actus Reus*

a. Omissions

The *actus reus* part of a criminal offence includes prohibited conduct, which may take the form of an act or an omission, and which may have multiple components. An act is an affirmative, observable action (e.g., punching, taking an object). An omission is a failure to perform a prescribed action (e.g., a failure to remain at the scene of an accident, or to provide the necessities of life to a dependent child). These categories — “act” and “omission” — are not watertight, but the distinction is analytically important. Generally, the law is more reticent to criminalize omissions, and particular standards operate to establish when an accused can be convicted for having failed to act.

b. Voluntariness

An accused can only be convicted of an act or omission that was undertaken voluntarily, in the sense that it was the product of thought-directed action (or inaction). By the same token, a person cannot be convicted of an act or omission that was performed automatically or reflexively. (Picture someone who strikes another during a seizure, or a person who shoves a fellow bus passenger because they lose their balance and fall forward when the bus stops suddenly. Intuitively, neither of these people should be found guilty of assault.) This “voluntariness” requirement applies in all criminal and regulatory prosecutions—though it is usually not contested or even expressly addressed because, in most cases, the facts very obviously do not raise any question as to voluntariness. When we get to regulatory offences, we will better understand the rationale for treating voluntariness as an “act” ingredient as opposed to a “mental state” ingredient. When we get to our units on incapacity, and on justifications & excuses, we will look more closely at various types of involuntariness that engage specific rules—including involuntariness attributable to a “mental disorder,” automatism, and extreme intoxication. The present unit introduces the concept of voluntariness and focuses on “physical” involuntariness.

c. Causation

In some cases, the *actus reus* includes a prohibited consequence (e.g., death, bodily harm, damage to property). Where there is a prohibited consequence, the Crown will also need to prove “causation,” i.e., that there is a causal link between the prohibited conduct and the prohibited consequence. Not just any causal link will do; the criminal law applies specific causation tests and standards, which are the focus of this unit.

8. Fact-finding, social context, and anti-Black racism

One of the cases that establishes the causation test(s), *R v. Smithers*, is extremely noteworthy from a critical race perspective. In this unit, we dig into its factual background and sociopolitical context, which we consider alongside other cases that have directly engaged issues of anti-Black racism.

This unit has two main purposes. One is to encourage us to consider how the “facts” that underpin a criminal verdict are actually established. In this course, we mostly read appellate-level decisions wherein the facts are presented as stable and settled, with little explicit thought being paid to the issue of how factual disputes were resolved at trial. In practice, most criminal cases are about factual, as opposed to legal, disputes: the parties agree the applicable law but disagree about what happened. Thus, the fact-finding process is centrally important to trials and warrants our consideration.

Another purpose of this unit is to encourage a critical analysis of how the fact-finding process—which, again, is centrally important in most cases—can be tainted by anti-Black racism and/or other forms of bias. This latter issue connects back to Unit 3(c), in which we noted that some of the epistemological assumptions that animate the Canadian criminal justice system can work to exclude or marginalize Indigenous participants. It also connects back to units 2(b) and (c), in which we examined institutional racism and bias in the sentencing context. And it connects to unit 3(a), in which we also considered how anti-Black racism operates within the system.

9. Elements of the Offence: Contemporaneity

To prove a criminal offence occurred, the Crown needs to show that the *actus reus* and *mens rea* overlapped temporally—a requirement referred to as “contemporaneity.” Returning to our recipe analogy, if we have all the ingredients but cannot mix them together, then we cannot execute a recipe. In the same way, if all the elements of the offence were present, but never at the same time, then as a general principle, the offence was not technically committed.

10. Elements of the Offence: *Mens Rea*

As we have seen, the elements of an offence include *actus reus* ingredients and *mens rea* ingredients. *Mens rea* is often referred to as the “fault” requirement. In this unit, we see that different offences require different mental states (and, oftentimes, more than one mental state in relation to different aspects of the act/omission). We study several discrete mental states, fall into two broad categories: subjective fault and objective fault. Subjective fault is concerned with what the accused was actually thinking. Did they intend a particular outcome? Did they perceive a risk? Did they know a particular fact? Etc. Objective fault is

not concerned with what the accused thought; rather, it focuses on what the accused did (or failed to do). In effect, objective fault ascribes blameworthiness to an accused who fails to direct their mind to a risk that a reasonable person would have appreciated and/or to respond appropriately to that risk. Within each of these two categories, there are different mental states. We can locate the different mental states on a “fault ladder,” which seeks to organize them in descending order, from the most blameworthy and most difficult to establish, to the least blameworthy and easiest to establish. When learning about the different mental states, we also add to our “statutory interpretation toolkit.” We encounter new principles and presumptions that help us to identify the mental states that are part of the “recipe” for a given offence, even when those mental states are not expressly spelled out by the relevant statutory provision.

a. Proving *mens rea*

We begin this unit with a brief examination of how mental states can be proved beyond a reasonable doubt, even though they are intangible.

b. Intent

The first mental state we study—intent—is near the top of our “fault ladder.” Although the concept of “intent” (i.e., acting “intentionally”) is relatively straightforward, it can be hard to distinguish from two other criminal law concepts: motive and “ulterior purpose.”

c. (Ulterior) Purpose

Some crimes require the Crown to prove that the accused acted with a particular purpose in mind—for example, the accused used force “for the purpose of overthrowing the government”; or the accused made a false statement “for the purpose of” procuring a passport.” (Note that the express language of “for the purpose of” is often, but not always, used. This mental state is distinct from both intent (which is a mental state the Crown often needs to prove, sometimes alongside ulterior purpose), and motive (which the Crown never needs to prove). This brief unit will help us draw these distinctions.

d. Recklessness

Recklessness is just below intent on our “fault ladder” and, like motive, is a subjective mental state. We must take care to distinguish recklessness from negligence, which is an objective mental state that is also associated with inappropriate risk-taking.

e. Knowledge & wilful blindness

Our final two mental states in the subjective *mens rea* portion of the fault ladder are knowledge and willful blindness. Knowledge and willful blindness are conceptually distinct but fully interchangeable, for reasons that are elaborated in this unit.

f. Objective fault

Some “true crimes” only require objective fault. More particularly, some crimes require criminal negligence, which is the most demanding objective fault standard, i.e., the one that is higher up on the fault ladder. Others require a lesser form of penal negligence. Both types of negligence are more demanding than the standard applied in civil contexts, and both are assessed using variations on the same “modified objective test.” We study the evolution of that test in this unit.

PART IV: REGULATORY OFFENCES

11. Regulatory Offences

Regulatory offences, also known as quasi-criminal offences, are contrasted with “true crimes.” They are often created at the provincial/territorial level, though there are also federal regulatory offences. Altogether they are similar to true crimes in important ways, regulatory offences are not understood to involve the same sort of moral judgment. Examples include driving with a suspended license, hunting without the proper permit, or failing to display required signage in a public building, among many, many others. We study regulatory offences in Criminal Law because they are interpreted and enforced using many of the same concepts, principles, and practices used for true crimes.

Regulatory offences can be associated with different types of fault, including two that are not available for true crimes: strict liability and absolute liability. In this unit, we add those two types of fault to the very bottom of our “fault ladder” and learn about how to identify them, thereby adding to our statutory interpretation toolkit. As indicated above, our study of regulatory offences also gives us a better understanding of the rationale for treating voluntariness as an “act” ingredient as opposed to a “mental state” ingredient.

PART V: SPECIFIC CRIMINAL OFFENCES

The next three units focus on three types of criminal offences: sexual assault offences; homicide offences; and a broader category called “predicate offences.” Among other things, studying these types of offences helps us deepen and nuance our understanding of *mens rea* concepts, since these offences all involve specific fault requirements that have evolved over time through a combination of judicial interpretation, constitutional challenge, and legislative intervention.

12. Sexual Assault & Consent

a. Sexual offences in social and historical context

b. Consent

c. Mistaken belief in communicated consent

Sexual assault and other crimes of sexual violence are pervasive in our society. The criminal law's approach to these crimes has evolved dramatically over time and continues to do so, thanks in large part to sustained advocacy efforts. This area of the law remains highly contested and is still in flux. We study it for a number of reasons. Studying sexual offences in their social and historical contexts gives us insight into how the criminal law evolves over time through constitutional litigation, legislative intervention, statutory interpretation, advocacy efforts, etc. Doing so also illuminates important equity issues. At the same time, a focused study of sexual assault allows us to nuance and reinforce our understanding of *mens rea*. Finally, sexual assault involves a number of specific rules and standards that are very complex and *sui generis*. They come up in practice regularly, including because sexual assault trials form a large part of criminal courts' dockets. (This is so, despite ongoing issues of underreporting.) Understanding the specific rules that operate in the sexual assault context is a core competency for criminal lawyers. This understanding can also be helpful in the many other legal practice areas where issues of sexual violence frequently arise (e.g. tort law, immigration and refugee law, family law, medical malpractice, employment law).

13. Homicide

Homicide includes murder and manslaughter, among other offences. Because murder is regarded as the most serious offence carrying the most severe punishment, it has a rigorous fault requirement that has evolved over time. In this unit, we trace that evolution, and we also practice statutory interpretation by working our way through the network of *Criminal Code* provisions that together establish the homicide offences.

14. Predicate Offences

Manslaughter is a type of homicide introduced in Unit 13. It is also an example of a crime based on a predicate offence. A crime based on a predicate offence consists of an underlying offence, with its associated *actus reus* and *mens rea* requirements, plus an additional component that is understood to import a higher degree of blameworthiness—usually a (more serious) consequence. Thus, for example, manslaughter can exist where an accused commits an assault and the victim dies unexpectedly. The accused has committed the underlying offence of assault and has thereby caused a death. The accused can be held criminally responsible for that death, even if the death was not intended or even foreseeable. Thus, the fault requirement for manslaughter is almost identical to the fault requirement for the underlying assault, even though manslaughter is understood to be a more serious offence carrying a higher sentencing range. This fact is hard to square with

some of the principles studied in our unit on *mens rea*, but it is supported by cases covered in this unit. In this unit, we will learn about several different predicate offences, all of which share this type of structure.

PART VI: INCAPACITY, JUSTIFICATIONS & EXCUSES

The final part of our course delves into some of the different claims an accused might make to avoid criminal liability—what are oftentimes referred to as “defences.” By studying defences, we deepen our understanding of the core concepts of blameworthiness and responsibility that animate much of this course. We also build out our understanding of voluntariness. We practice our reading and interpretation skills (since some defences are statutory, others are established by common law, and some have been either created or refined to protect *Charter* rights). We also further round out our understanding of when an accused should be convicted or acquitted of a crime.

At times the accused must be acquitted because, due to a defence, the Crown cannot prove all the elements of the offence. Claims of incapacity are, in effect, claims that the accused did not actually commit the offence because they were not capable of forming the requisite *mens rea* and/or of acting voluntarily.

At other times, the defence operates such that the accused must be acquitted even though the Crown can prove all the elements of the offence. Justifications and excuses operate as claims that, although the accused technically committed the offence (i.e. although the Crown can prove all the elements), the accused should be acquitted because their conduct was justified or excusable. Where justifications or excuses are in play, the Crown must prove that all the elements of the offence are present, *and* the Crown must prove that at least one element of the defence is not present.

15. Incapacity

a. Age

We start by looking, very briefly, at how young people are treated by the criminal justice system. Youth within a certain age-range can be convicted of crimes. Crimes and defences are interpreted in the same way for youths they are for adults, but the rules of criminal procedure and sentencing differ. Youth below a certain age cannot be liable.

b. Mental disorder

An accused person can be found “not criminally responsible” (i.e., “NCR” or “NCR-MD”) because, virtue of a “mental disorder,” they were incapable of appreciating the nature or

quality of their act/omission, and/or they were incapable of knowing it was wrong. After a basic overview of the implications of an NCR verdict, we focus on the standard by which NCR claims are assessed, and we consider its historical antecedent.

c. Automatism

This part of the course reprises some of the concepts from Unit 7(b) (“Voluntariness”). An accused person may act involuntarily for a number of reasons, including (but not limited to) their being in an automatistic state, i.e., a dissociative state. A person who veers into oncoming traffic because of a sneezing fit, for example, knows they are driving even though they cannot voluntarily control their actions at the time; they are not automatistic, although their conduct is physically involuntary. By contrast, a person who veers into oncoming traffic because they are driving during a sleepwalking episode does not consciously appreciate that they are driving at all. This latter person is acting involuntarily because they are in a state of automatism. Because of public safety concerns, as well as an apprehension that automatism may be easy to claim but hard to disprove, the law has evolved particular rules that apply when the accused claims to have acted automatisically. Among other things, we now distinguish between “mental disorder automatism,” which results in an NCR finding, and “non-mental disorder automatism,” which results in an acquittal. This distinction is central to this unit, as are the burdens and standards of proof that operate when the accused claims automatism.

d. Intoxication

Three types of intoxication are recognized in Canadian law. Mild intoxication describes the state of a person who, after consuming intoxicants, experiences poor judgment, lowered inhibitions, etc. It is never a defence. Advanced intoxication describes the state of a person who, because of intoxicants, is incapable of forming the higher-order mental state required for some offences (e.g., a person whose intoxication prevents them from forming the intent to kill). It may give rise to a reasonable doubt about whether the accused had the requisite *mens rea* to commit the offence charged (though in these cases, the accused will generally be convicted of a related offence requiring a less sophisticated mental state, e.g., manslaughter). Extreme intoxication describes the state of a person who is rendered automatistic by a drug. Extreme intoxication has been the subject of controversial cases and legislative intervention.

16. Justifications & Excuses

a. Defence of person

Defence of person is often called “self defence” (though in practice, it also applies to the defence of a third party). Our unit focuses on how to apply the test for this defence, which is established by statute and has been further shaped by caselaw. Our unit also makes space for critical reflection on some of the social dynamics and phenomena that relate to the defence, including gender-based violence and racism.

b. Provocation

Provocation is a partial defence to murder; when it applies, the accused is convicted of manslaughter instead of murder. It is governed by a mix of statute and caselaw, the evolution of which reflects broader changes to social norms and attitudes.

c. Necessity

Necessity is a defence that applies when the accused has committed an unlawful act or omission to avoid an impersonal threat (i.e., a threat that does not emanate from another person but rather from a situation, such as an extreme weather event that forces someone to break into another's property to seek shelter). Our unit focuses on how the test for necessity is delineated and applied, and on the underlying rationale for this defence. We will see that the rationale relates to concepts of voluntariness studied earlier in the course. Our unit also invites critical reflection on disability rights, which were central to a leading necessity case, *R. v. Latimer*.

d. Duress

Duress is a defence that applies when the accused has committed an unlawful act or omission to avoid a threat made by another person (what is often described as the “gun to the head” scenario). The law of duress is complicated by the fact that the standard differs depending on the accused's role in the alleged offence. Our unit focuses on how the test for duress is delineated and applied in different scenarios, and on the underlying rationale for this defence. As with necessity, we will see that the rationale relates to concepts of voluntariness studied earlier on in the course. Our study of duress and necessity will also point us back to some of the concepts first encountered in our early units on sentencing, to do with how the system assesses blameworthiness when people in constrained circumstances commit criminal acts. Full circle!

COURSE OUTLINE – WEEKLY SCHEDULE

*** This outline may be adjusted as we progress through the materials.*

*** Please read the materials in the order in which they are listed.*

- “**SCD**” refers to the Stuart, Coughlan & Dufraimont casebook
- “**CC**” refers to the *Criminal Code*
- “**Supp.**” refers to the supplementary materials posted to the eClass, including readings and pre-recorded lecture videos
- “**Recommended**” refers to non-mandatory readings; additional recommended readings may be added to the website as we go

SCHEDULE	UNITS	ASSIGNED READINGS
<u>Week 1:</u> • Tues., Sept. 1, 1:30-3:20	<u>Weekly Objectives:</u> 1. Begin to think critically about the purpose(s) of the criminal justice system in relation to the scope of criminalization. 2. Explain the principle of restraint as it relates to the scope of criminalization. 3. Start to think about three key themes of the course: • Blameworthiness – Responsibility – Fault • Individual & Collective Rights, Interests, Burdens • Discretion vs. Rule of Law	
	1. Introduction to the Course (a) Structure of the Course (b) Scope of the Course	• Course Outline (please read in full) • Supp.: Welcome Video (Pre-recorded lecture video)

	(c) Key Themes	• Supp.: Canadian Committee on Corrections, “Towards Unity: Criminal Justice and Corrections” (Ouimet Report) • Supp.: Standing Senate Committee on Legal and Constitutional Affairs, “Delaying Justice is Denying Justice” • SCD 29-31: V. Napoleon & H. Friedland, “Indigenous Legal Traditions: Roots to Renaissance”
• Fri., Sept. 4, 10:30-12:20 eClass Exercise #1	<u>Weekly Objectives:</u> 4. Identify and explain the purpose and principles of sentencing set out in the <i>Criminal Code</i>, including the fundamental principle of proportionality. 5. Start to think about sentencing in relation to our “key themes.” 6. Explain the distinct approach to sentencing Indigenous offenders mandated by s. 718.2(e) of the <i>Criminal Code</i> and developed in <i>Gladue</i> and <i>Ipeelee</i>, including how it is applied and its stated purposes. 7. Reflect on the arguments for and against that distinct approach (some of which are canvassed in <i>Ipeelee</i>).	
	2. Sentencing: (a) The Principles and Purposes of Sentencing	• CC ss. 718, 718.04, 718.1, 718.2, 718.201 • Supp.: <i>R. v. Arcand</i>
	(b) Sentencing Indigenous Offenders	• Supp.: <i>R. v. Ipeelee</i> • Supp. “Honouring the Truth, Reconciling for the Future: Summary of the Final Report of the Truth and Reconciliation Commission of Canada” • Supp.: “Reclaiming Power and Place: The Final Report of the National Inquiry into Missing and Murdered Indigenous Women and Girls” – Calls for Justice • Recommended – Supp.: BC Legal Services Society, <i>Gladue Submission</i>

		<i>Guide</i> It is recommended you <u>skim</u> this document for a more concrete sense of how Gladue principles may be implemented in practice.
<u>Week 2:</u> Tues., Sept. 8, 1:30-3:20	<u>Weekly Objectives:</u> 8. Continue to think about sentencing in relation to our “key themes.” 9. Engage in critical analysis about efforts to develop a distinct approach to sentencing Black offenders, including the relationship between those efforts and the <i>Gladue</i> framework. 10. Start to familiarize yourself with the structure of the <i>Criminal Code</i> and of individual criminal offences. 11. Define plea bargaining (i.e., resolution discussions) and consider how that practice relates to prosecutorial discretion. 12. Explain, in general terms, some of the procedural rules that informally allow anti-Black racism and other forms of discrimination to influence criminal prosecutions.	
	2. Sentencing (Continued): (c) Sentencing Black Offenders	Supp.: <i>R. v. Morris</i>
	3. The Criminal Justice Process (a) Overview of the Criminal Justice Process (b) Plea Bargaining	Supp.: “Role of the Crown: Preamble to the Crown Prosecution Manual” Supp.: “The Criminal Justice Process in Ontario” SCD 142-146: “Procedural Overview: Procedural Classification of Offences” Supp.: Ontario Human Rights Commission, “A Disparate Impact” - Please read “Racial disparity in arrests and charges...” at pp. 4-7; the rest is recommended reading.

• Fri., Sept. 11, 10:30-12:20 eClass Exercise #2	<u>Weekly Objectives:</u> 13. Develop some familiarity with the theory and structure of the adversarial criminal trial and reflect critically on the ways in which the adversarial paradigm is in tension with Indigenous perspectives. 14. Explain the presumption of innocence, including its common law and constitutional statuses, and its relationship to the proof beyond a reasonable doubt standard. 15. Describe how the proof beyond a reasonable doubt standard should be explained to juries. 16. Apply the <i>W.(D.)</i> framework and explain its purpose. 17. Differentiate among legal burdens, evidentiary burdens, and tactical burdens. 18. Explain and apply the air of reality test.	
	3. The Criminal Justice Process (Continued) (c) The Adversarial System in Critical Perspective	• Supp.: D.M. Paciocco, “Understanding the Accusatorial System”
	4. Presumption of Innocence, Burdens of Proof, and Standards of Proof (a) Presumption of Innocence (b) The <i>W.(D.)</i> framework	• SCD 165-169: <i>R. v. Oakes</i> • SCD 154-157: <i>R. v. Lifchus</i> • SCD 157-158: <i>R. v. Starr</i> • <u>Recommended</u> – SCD 158-162: <i>R. v. S. (J.H.)</i>
	(c) Air of reality test	• SCD 741-744: <i>R. v. Cinous</i>
	(d) Burdens of Proof, Standards of Proof &	• Supp.: “Burdens of Proof, Standards of Proof & Presumptions” (Pre-

	Presumptions	recorded lecture video) • Supp.: “Burdens of Proof, Standards of Proof & Presumptions” (document)
<u>Week 3:</u> • Tues., Sept. 15, 1:30-3:20 eClass Exercise #3	<u>Weekly Objectives:</u> 19. Explain the statuses of common law offences and defences, as well as the rationale for those statuses. 20. Describe the role of common law precedent in the Criminal Law. 21. Build your “statutory interpretation toolkit”: • Apply the modern principle of statutory interpretation • Explain the principle of bilingual interpretation • Apply the rule of strict construction	
	5. Sources of Criminal Law (a) Common Law	• SCD 78: <i>R. v. Sedley</i> • SCD 79-81: <i>Frey v. Fedoruk</i> • SCD 82: note on CC ss. 177 & 162(1) • CC ss. 8(3), 9 • SCD 83: “(ii) Doctrine of precedent”
	(b) Statute	• SCD 87-88: <i>Re: Application Under s. 83.28 of the Criminal Code</i> • SCD 88-92: <i>R. v. Clark</i> • SCD 93: “(ii) Bilingual interpretation” • SCD 94: “(iii) Strict construction”

• Fri., Sept. 18, 10:30-12:20	<u>Weekly Objectives:</u> 22. Explain how ss. 91 & 92 of the <i>Constitution</i> divide power over the criminal justice system between the federal and provincial/territorial legislatures. 23. Add to your “statutory interpretation toolkit”: • The purposive approach to <i>Charter</i> interpretation 24. Explain the standard for recognizing a s. 7 (<i>Charter</i>) “principle of fundamental justice.” 25. Engage in critical analysis about how much interpretive work a court should do before declaring a criminal law void for vagueness. 26. Distinguish and apply the following s. 7 (<i>Charter</i>) principles of fundamental justice: • Vagueness [...]	
	6. Constitutional Limits on Criminal Law (a) Division of Powers	• SCD 102-103: <i>The Constitution Act</i>, ss. 91-92
	(b) The <i>Charter</i>	• SCD 114-115: <i>Hunter v. Southam Inc.</i> ▪ Read the case and the four-paragraph note after it on p. 115. • SCD 115-116: “(ii) Section 7 and Principles of Fundamental Justice” • SCD 5-10: <i>R. v. Malmo-Levine</i> • SCD 116-121: <i>Canadian Foundation for Children, Youth & the Law v. Canada (Attorney General)</i> • <u>Recommended – Supp.:</u> L. Kelly & N. Bala, “More harm than good – Repealing reasonable correction defence could backfire”

<u>Week 4:</u> Tues., Sept. 22, 1:30-3:20	<u>Weekly Objectives:</u> 26. (<i>continued</i>) Distinguish and apply the following s. 7 (<i>Charter</i>) principles of fundamental justice: - Vagueness - Overbreadth - Arbitrariness - Gross disproportionality	
	6. Constitutional Limits on Criminal Law (continued) (b) The <i>Charter</i> (continued)	SCD 123-132: <i>Bedford v. Canada</i> SCD 132-133: <i>R. v. Safarzadeh-Markhali</i> Supp: <i>R. v. Kloubakov</i>
Fri., Sept. 25 10:30-12:20	<u>Weekly Objectives:</u> 27. Explain what is meant by the terms “elements of the offence,” “ <i>actus reus</i> ” and “ <i>mens rea</i> .” 28. Understand and apply the rules that govern when a person can be held criminally liable for an omission. 29. Explain the voluntariness component of <i>actus reus</i> . 30. Understand how physical involuntariness claims are adjudicated (including the evidentiary burden, burden of proof, and standard of proof that are applied).	
	7. Elements of the Offence: Actus Reus (a) Omissions	CC ss. 215, 216, 217, 217.1, 218 SCD 264-267: <i>R. v. Browne</i>
	(b) Voluntariness	SCD 278-272: Defining Conduct That is Not “Voluntary”: <i>R. v. King</i>; I.H. Patient, “Some Remarks About the Element of Voluntariness in Offences

		of Absolute Liability”; <i>Rabey v. R.</i> ; <i>R. v. Parks</i> ; <i>R. v. Stone</i> ; <i>R. v. Lucki</i> • Supp: <i>North Bay (City) v. Viens</i> (Week 5 excerpts)
<u>Week 5:</u> Tues., Sept. 29, 1:30-3:20 eClass Exercise #5	<u>Weekly Objectives:</u> 31. Identify when causation is an issue in a case. 32. State and apply the standard(s) for causation (<i>Smithers/Nette</i>). 33. Explain and apply the following rules/principles: - Thin skull - Substantial cause test for s. 231(5) murder - Intervening acts 34. Reflect on how racism and other forms of discrimination can impact fact-finding in criminal investigations and trials.	
	(c) Causation	SCD 277: “6. Causation: (a) <i>Criminal Code</i>” SCD 277-291: <i>Smithers v. R.</i> SCD 289-290: <i>R. v. Nette</i> - Read Part D (“Explaining the Standard of Causation to the Jury”) Supp.: Causation (Pre-recorded lecture video) SCD 299-308: <i>R. v. Maybin</i> CC ss. 224-28
	8. Fact-finding, social context, and anti-Black racism	<u>Recommended:</u> Supp.: R.T. Runfola, “He Is a Hockey Player, 17, Black and Convicted of Manslaughter” (<i>NYT</i>, 17 Oct. 1974) <u>Recommended:</u> Supp.: Dan Proudfoot, “The Tragedy of Barry and Paul” (<i>The Ottawa Journal</i>, 12 July 1975)

		The two recommended readings give us additional context about the Smithers case. The Runfolo article is shorter. For interested students, the Proudfoot article is a longread that has been recommended by Mr. Smithers himself as providing a good overview of his experiences.
Fri. Oct. 1, 10:30-12:20	<u>Weekly Objectives:</u> 35. Build your “statutory interpretation toolkit”: The ‘symmetry’ rule of thumb 36. Explain and apply the concept of contemporaneity. 37. Explain how <i>mens rea</i> is proved in criminal cases. 38. Explain and apply the concept of intent, including by distinguishing it from motive, and from ulterior purpose. 39. Explain and apply the concept of (ulterior) purpose, including by distinguishing it from motive, and from intent.	
	9. Elements of the Offence: Contemporaneity	Supp.: <i>R. v. Williams</i>
	10. Elements of the Offence: <i>Mens Rea</i> (a) Proving <i>mens rea</i>	SCD 315: <i>R. v. Walle</i>
	(b) Intent	SCD 418-425: <i>R. v. Buzzanga and Durocher</i>

	(c) (Ulterior) Purpose	SCD 413-417: <i>R. v. Hibbert</i>
<u>Week 6:</u> Tues, Oct. 6, 1:30-3:30 eClass Exercise #6	<u>Weekly Objectives:</u> 40. Explain and apply the concept of recklessness (including by distinguishing it from intent) 41. Explain and apply the concepts of knowledge and wilful blindness, including their relationship to one another.	
	10. Elements of the Offence: <i>Mens Rea</i> (continued) (d) Recklessness	SCD 433: <i>Sansregret v. R.</i> - Read only the first paragraph of the case.
	(e) Knowledge & wilful blindness	SCD 437-438: <i>R. v. Briscoe</i> SCD 438-439: <i>R. v. Lagace</i> Recommended - SCD 439-442: <i>R. v. Blondin</i> SCD 433-437: <i>Sansregret v. R.</i> - Read the remainder of the case, from the second paragraph on.
Fri. Oct. 9, 10:30-12:20 eClass Exercise #7	<u>Weekly Objectives:</u> 42. Distinguish subjective fault from objective fault. 43. Build your “statutory interpretation toolkit”: Subjective fault presumption 44. Reflect on the disagreement between Lamer C.J. and McLachlin J. (as she then was) in <i>Creighton</i> about the nature of the objective test.	

	45. Explain and apply the modified objective test. 46. Explain when the marked and substantial departure standard applies.	
	(f) Objective fault	• SCD 452: “(ii) Marked departure test” • SCD 452-456: <i>R. v. Hundal</i> • SCD 456-464: <i>R. v. Creighton</i> • SCD 464-473: <i>R. v. Beatty</i> • SCD 476-477: <i>R. v. Javanmardi</i> • SCD 478-479: <i>R v Goforth</i>
<u>Week 7:</u> • Tues, Oct. 13, 1:30-3:30	<u>Weekly Objectives:</u> 47. Explain the distinction between regulatory offences and true crimes, including the key rationales for that distinction. 48. Explain the distinction between strict liability offences and absolute liability offences and identify them using the principles of statutory interpretation. 49. Build your “statutory interpretation toolkit”: • Presumption of strict liability • <i>Charter</i> limitation on absolute liability offences 50. Explain and apply the defence of due diligence. 51. Revisit the concept of “involuntariness” and consider the significance of its status as an <i>actus reus</i> element in relation to regulatory offences.	
	11. Regulatory Offences	• SCD 329-331 & 333-336: <i>R. v. Wholesale Travel Group Inc.</i> ▪ You are <u>not</u> required to read the section on “The Offence in the

		<i>Present Case” at pp. 344-46.</i> • SCD 320-329: <i>R. v. City of Sault Ste. Marie</i> • SCD 336-341: <i>R. v. Chapin</i> • SCD 342-349: Reference re: Section 94(2) of the Motor Vehicle Act (B.C.) • Supp: <i>North Bay (City) v. Viens</i> (Week 8 excerpts)
• Fri., Oct. 16, 10:30-12:20	~ Review & Catch-up	• Supp.: <i>R. v. Zora</i> • <u>Recommended:</u> Supp.: Review + Exam Tips (Pre-recorded lecture video)
<u>Week 8:</u> • Tues. Oct. 20, 1:30-3:20	MIDTERM EXAMINATION <i>No lecture. The midterm examination will be conducted in-class. Please see pp. 6-7 above for details.)</i>	
• Fri., Oct. 23, 10:30-12:20	<u>Weekly Objectives:</u> 52. Develop a general understanding of the sexual assault law reforms that occurred in the early 1980s, including the social context factors that motivated these reforms. 53. Distinguish between assault and sexual assault. 54. Explain how the Crown can establish the absence of consent (<i>actus reus</i> – circumstance) in the context of sexual assault, including by demonstrating an incapacity to consent, or circumstances vitiating consent. 55. Explain the law governing the “honest but mistaken belief in communicated consent defence” to sexual assault.	

	12. Sexual Assault (a) Sexual offences in social and historical context	• CC ss. 265, 271-73, 273.1-273.2 • Supp.: Sexual Assault, Part 1 (Pre-recorded lecture video)
	(b) Consent (c) Mistaken belief in communicated consent	• Supp.: Sexual Assault, Part 2 (Pre-recorded lecture video) • Supp.: <i>R. v. G.F.</i>, 2021 SCC 20 • SCD 574-581: <i>R. v. Barton</i>
<u>Week 9:</u> • Tues., Oct. 27, 1:30-3:20	<u>Weekly Objectives:</u> 56. Explain and apply the rules that govern when culpable homicide constitutes – (a) First degree murder (b) Second degree murder (c) Manslaughter 57. Explain the current status of “felony murder” including its relationship to the s. 7 principles of fundamental justice.	
	13. Homicide	• Supp.: “Homicide and Subjective Fault” (Pre-recorded lecture video) • CC ss. 222-37 ▪ <i>Some of these sections are review from Week 5</i> • Supp.: “Homicide Map” • SCD 367-369: <i>R. v. Collins</i> • SCD 399-405: <i>R. v. Sundman</i> • <i>Recommended</i> - SCD 369-380 & 404-406: <i>Vaillancourt v. R.</i>; <i>R. v. Martineau</i> [majority reasons only]; “Subjective awareness guaranteed by

		the <i>Charter</i> for few crimes” ▪ <i>These cases and concepts are introduced in the pre-recorded lecture video and will be taken up in this class and again when we discuss Predicate Offences (Week 10). Interested students can also read the case excerpts and the associated discussion.</i>
• Fri., Oct. 30, 10:30-12:20	58. Explain what is meant by the term “predicate offence” and its relationship with the symmetry rule of thumb. 59. Identify and apply the <i>mens rea</i> requirements for predicate offences including manslaughter, unlawfully causing bodily harm, and aggravated assault.	
	14. Predicate Offences	• SCD 490-497: <i>R. v. Creighton</i>
• Tues, Nov. 3 • Fri. Nov. 6	<i>Reading Week. No classes.</i> <i>(Friendly reminder: this may be a good week to catch up on eClass exercises #1-8!)</i>	
<u>Week 10:</u> • Tues., Nov. 10, 1:30-3:20	<u>Weekly Objectives:</u> 60. Explain, in general terms, how NCR (not criminally responsible on account of mental disorder) findings are adjudicated, as well as the implications of an NCR finding for the accused. 61. Explain and apply the test for NRC, including by identifying which party bears the evidentiary and legal burdens.	
	15. Incapacity (a) Age	• <i>No associated readings</i>

	(b) Mental disorder	• Supp.: <i>R. v. Bharwani</i> • CC ss. 16, 672.34, 672.45, 672.54 • “Mental Disorder, Part I” (Pre-recorded lecture video) • SCD 642-651: <i>Cooper v. R.</i> • SCD 651-652: <i>Kjeldsen v. R.</i> • SCD 652-654: <i>R. v. Abbey</i> • SCD 654-655: <i>R. v. Chaulk</i> • SCD 655: note on <i>R. v. Oommen</i> • SCD 656-658: <i>R. v. Campione</i>
• Fri. Nov. 13, 10:30-12:20 eClass Exercise #8	<u>Weekly Objectives:</u> 62. Explain what is meant by “automatism” including its relationship with “voluntariness.” 63. Explain how automatism claims are adjudicated, including: (a) the factors/evidence that may/must be considered when assessing automatism claims; (b) how to distinguish between “non-mental disorder” automatism and NCR; and (c) the evidentiary burden, burden of proof, and standard of proof that apply throughout these analyses—as well as which questions are answered by the trial judge and which are answered by triers of fact (i.e., juries or judges sitting alone).	
	(c) Automatism	• Recommended - SCD 600-666: <i>R. v. Rabey</i> (ONCA & SCC) • SCD 667-678: <i>R. v. Parks</i> • “Automatism, Part I” (Pre-recorded lecture video) • SCD 678-687: <i>R. v. Stone</i> • “Automatism, Part II” (Pre-recorded lecture video) • SCD 687-699: <i>R. v. Luedecke</i>

<u>Week 11:</u> Tues., Nov. 17, 1:30-3:20	<u>Weekly Objectives:</u> 64. Distinguish the three types of intoxication (mild; advanced; extreme) and explain their implications for criminal liability. 65. Explain the current state of the law governing the defence of extreme intoxication.	
	(d) Intoxication	“Intoxication” (Pre-recorded lecture video) Supp.: <i>R v Brown</i> CC s. 33.1
Fri., Nov. 20 10:30-12:20 eClass Exercise #9	<u>Weekly Objectives:</u> 66. State and apply the test for defence of person. 67. Reflect on how the Court’s reasoning in <i>R. v. Lavallee</i> informs the content and application of s. 34 (defence of person). 68. State and apply the test for provocation and identify the offence(s) for which it can be invoked	
	16. Justifications & Excuses (a) Defence of person	CC s. 34 SCD 764-775: <i>R v Khill</i> <u>Recommended</u> - SCD 750-764: <i>R. v. Lavallee</i>; <i>R. v. Malott</i> SCD 779: Lisa Dufraimont, “Comment on <i>R v Fournier</i>”
	(b) Provocation	CC s. 232

<u>Week 12:</u> Tues., Nov. 24, 1:30-3:20 eClass Exercise #10	<u>Weekly Objectives:</u> 69. State and apply the test for necessity. 70. Explain when the statutory defence of duress applies (s. 17) and when the common law test for duress applies. 71. State and apply the test for duress.	
	16. Justifications & Excuses (continued) (c) Necessity	SCD 786-796: <i>Perka v. R.</i> SCD 797-803: <i>R. v. Latimer</i> Supp.: M.D. Lepofsky, “The Latimer Case: Murder is Still Murder When the Victim is a Child with a Disability” (Part III: “The Context: The World Facing Parents of Children with Disabilities”)
	(d) Duress	CC ss. 17, 18 SCD 818-828: <i>R. v. Ruzic</i>
Fri. Nov. 27, 1:30-3:20	~ Review & Catch-up	~ No assigned readings NOTE: All E-Class exercises due today @ 3:30PM(ET)!